

order issued by an inspector appointed by a local municipality, the applicant shall, within the time set out in the Rules, give the local municipality,

(a) a copy of the application; and

(b) a copy of any notice of hearing issued by the Board in respect of the application. 2016, c. 25, Sched. 5, s. 3.

Certificate of service

(2) The applicant shall, in the circumstances set out in the Rules, file with the Board a certificate of service on the local municipality in the form approved by the Board. 2016, c. 25, Sched. 5, s. 3.

Application

(3) If the local municipality is a party to the application,

(a) paragraph 1 of subsection 188 (1) and section 189 do not apply with respect to the local municipality; and

(b) clause (1) (b) applies despite the *Statutory Powers Procedure Act*. 2016, c. 25, Sched. 5, s. 3.

▼ Section Amendments with date in force (d/m/y)

Board may extend, shorten time

190 (1) The Board may extend or shorten the time requirements related to making an application under section 126, subsection 159 (2) or section 226 in accordance with the Rules. 2006, c. 17, s. 190 (1).

Same

(2) The Board may extend or shorten the time requirements with respect to any matter in its proceedings, other than the prescribed time requirements, in accordance with the Rules. 2006, c. 17, s. 190 (2).

How notice or document given

191 (1) A notice or document is sufficiently given to a person other than the Board,

- (a) by handing it to the person;
- (b) if the person is a landlord, by handing it to an employee of the landlord exercising authority in respect of the residential complex to which the notice or document relates;
- (c) if the person is a tenant, subtenant or occupant, by handing it to an apparently adult person in the rental unit;
- (d) by leaving it in the mail box where mail is ordinarily delivered to the person;
- (e) if there is no mail box, by leaving it at the place where mail is ordinarily delivered to the person;
- (f) by sending it by mail to the last known address where the person resides or carries on business; or
- (g) by any other means allowed in the Rules. 2006, c. 17, s. 191 (1).

Same, tenant or former tenant no longer in possession

(1.0.1) Despite subsection (1), a notice or document is sufficiently given to a tenant or former tenant who is no longer in possession of a rental unit,

- (a) by handing it to the tenant or former tenant;
- (b) by sending it by mail to the address where the tenant or former tenant resides;
- (c) by handing it to an apparently adult person where the tenant or former tenant resides; or
- (d) by any other means allowed in the Rules. 2020, c. 16, Sched. 4, s. 29.

Same, Part V.1

(1.1) Despite subsection (1), for the purposes of Part V.1, a notice or document is sufficiently given to a person other than the Board,

- (a) by handing it to the person;
- (b) by handing it to an apparently adult person in the member unit;
- (c) by leaving it in the mail box where mail is ordinarily delivered to the person;
- (d) if there is no mail box, by sliding it under the door of the member unit or

through a mail slot in the door or leaving it at the place where mail is ordinarily delivered to the person;

(e) by sending it by mail to the last known address where the person resides or carries on business;

(f) if the person is a non-profit housing co-operative,

(i) by delivering it personally or sending it by mail to,

(A) the head office of the co-operative as shown on the records of the Ministry of Finance, or

(B) the co-operative's business office, or

(ii) by handing it to a manager or co-ordinator of the co-operative exercising authority in respect of the residential complex, as defined in Part V.1, to which the notice or document relates; or

(g) by any other means allowed in the Rules. 2013, c. 3, s. 42.

When notice deemed valid

(2) A notice or document that is not given in accordance with this section shall be deemed to have been validly given if it is proven that its contents actually came to the attention of the person for whom it was intended within the required time period. 2006, c. 17, s. 191 (2).

Mail

(3) A notice or document given by mail shall be deemed to have been given on the fifth day after mailing. 2006, c. 17, s. 191 (3).

▼ Section Amendments with date in force (d/m/y)

How notice or document given to Board

192 (1) A notice or document is sufficiently given to the Board,

(a) by hand delivering it to the Board at the appropriate office as set out in the Rules;

(b) by sending it by mail to the appropriate office as set out in the Rules; or

(c) by any other means allowed in the Rules. 2006, c. 17, s. 192 (1).

Same

(2) A notice or document given to the Board by mail shall be deemed to have been given on the earlier of the fifth day after mailing and the day on which the notice or the document was actually received. 2006, c. 17, s. 192 (2).

Alternatives to affidavits

192.1 Where a provision of this Act requires an affidavit from a person with respect to a specified statement or specified information, the Rules may,

- (a) authorize the use of another document, which may be unsworn, from that person with respect to that specified statement or specified information; and
- (b) require that the document may be used only if it is provided to the Board in accordance with the Rules. 2017, c. 13, s. 27.

▼ Section Amendments with date in force (d/m/y)

Time

193 Time shall be computed in accordance with the Rules. 2006, c. 17, s. 193.

Mediation or other dispute resolution process

194 (1) The Board may attempt to settle through mediation or another dispute resolution process any matter that is the subject of an application or agreed upon by the parties. 2020, c. 16, Sched. 4, s. 30 (1).

Settlement may override Act

(2) Despite subsection 3 (1) and subject to subsection (3), a settlement agreed to under this section may contain provisions that contravene any provision under this Act. 2006, c. 17, s. 194 (2); 2020, c. 16, Sched. 4, s. 30 (2).

Restriction

(3) The largest rent increase that can be agreed to under this section for a rental unit that is not a mobile home or a land lease home or a site for either is equal to the sum

of the guideline and 3 per cent of the previous year's lawful rent. 2006, c. 17, s. 194 (3); 2020, c. 16, Sched. 4, s. 30 (3).

Settlement

(4) If some or all of the issues with respect to an application are settled under this section, the Board shall dispose of the application in accordance with the Rules. 2020, c. 16, Sched. 4, s. 30 (4).

Hearing

(5) If there is no settlement, the Board shall hold a hearing. 2006, c. 17, s. 194 (5); 2020, c. 16, Sched. 4, s. 30 (5).

▼ Section Amendments with date in force (d/m/y)

Money paid to Board

195 (1) Where the Board considers it appropriate to do so, the Board may, subject to the regulations,

(a) require a respondent to pay a specified sum into the Board within a specified time; or

(b) permit a tenant who is making an application for an order under paragraph 1 of subsection 29 (1) to pay all or part of the rent for the tenant's rental unit into the Board. 2006, c. 17, s. 195 (1).

Rules re money paid

(2) The Board may establish procedures in the Rules for the payment of money into and out of the Board. 2006, c. 17, s. 195 (2).

No payment after final order

(3) The Board shall not, under subsection (1), authorize or require payments into the Board after the Board has made its final order in the application. 2006, c. 17, s. 195 (3).

Effect of failure to pay under cl. (1) (a)

(4) If a respondent is required to pay a specified sum into the Board within a specified time under clause (1) (a) and fails to do so, the Board may refuse to consider the evidence and submissions of the respondent. 2006, c. 17, s. 195 (4).

Effect of payment under cl. (1) (b)

(5) Payment by a tenant under clause (1) (b) shall be deemed not to constitute a default in the payment of rent due under a tenancy agreement or a default in the tenant's obligations for the purposes of this Act. 2006, c. 17, s. 195 (5).

Board may refuse to proceed if money owing

196 (1) Upon receiving information that an applicant owes money to the Board as a result of having failed to pay any fine, fee or costs,

(a) if the information is received on or before the day the applicant submits an application, an employee in the Board shall, in such circumstances as may be specified in the Rules, refuse to allow the application to be filed;

(b) if the information is received after the application has been filed but before a hearing is held, the Board shall stay the proceeding until the fee, fine or costs have been paid and may discontinue the application in such circumstances as may be specified in the Rules;

(c) if the information is received after a hearing with respect to the application has begun, the Board shall not issue an order until the fine, fee or costs have been paid and may discontinue the application in such circumstances as may be specified in the Rules. 2006, c. 17, s. 196 (1); 2013, c. 3, s. 43 (1).

Definition

(2) In subsection (1),

"fine, fee or costs" does not include money that is paid in trust to the Board pursuant to an order of the Board and that may be paid out to any party when the application is disposed of. 2013, c. 3, s. 43 (2).

▼ Section Amendments with date in force (d/m/y)

Where Board may dismiss

197 (1) The Board may dismiss an application without holding a hearing or refuse to allow an application to be filed if, in the opinion of the Board, the matter is frivolous or vexatious, has not been initiated in good faith or discloses no reasonable cause of action. 2006, c. 17, s. 197 (1).

Same

(2) The Board may dismiss a proceeding without holding a hearing if the Board finds that the applicant filed documents that the applicant knew or ought to have known contained false or misleading information. 2006, c. 17, s. 197 (2).

Joinder and severance of applications

Applications joined

198 (1) Despite the *Statutory Powers Procedure Act*, the Board may direct that two or more applications be joined or heard together if the Board believes it would be fair to determine the issues raised by them together. 2006, c. 17, s. 198 (1).

Applications severed

(2) The Board may order that applications that have been joined be severed or that applications that had been ordered to be heard together be heard separately. 2006, c. 17, s. 198 (2).

Application severed

199 The Board may order that an application be severed and each severed part dealt with as though it were a separate application under this Act if,

- (a) two or more applications are combined under section 186 in the application;
- (b) the application is made by more than one tenant under subsection 186 (2); or
- (c) the Board believes it would be appropriate to deal separately with different matters included in the application. 2006, c. 17, s. 199.

Amendment and withdrawal of applications

Amend application

200 (1) An applicant may amend an application to the Board in accordance with the

Rules. 2006, c. 17, s. 200 (1).

Withdraw application

(2) Subject to subsection (3), an applicant may withdraw an application at any time before the hearing begins. 2006, c. 17, s. 200 (2).

Same, harassment

(3) An applicant may withdraw an application under paragraph 4 of subsection 29 (1) only with the consent of the Board. 2006, c. 17, s. 200 (3).

Same

(4) An applicant may withdraw an application after the hearing begins with the consent of the Board. 2006, c. 17, s. 200 (4).

Other powers of Board

201 (1) The Board may, before, during or after a hearing,

- (a) conduct any inquiry it considers necessary or authorize an employee in the Board to do so;
- (b) request an employee in the Board to conduct any inspection it considers necessary;
- (c) question any person, by telephone or otherwise, concerning the dispute or authorize an employee in the Board to do so;
- (d) permit or direct a party to file additional evidence with the Board which the Board considers necessary to make its decision;
- (e) view premises that are the subject of the hearing; or
- (f) on its own motion and on notice to the parties, amend an application if the Board considers it appropriate to do so and if amending the application would not be unfair to any party. 2006, c. 17, s. 201 (1); 2013, c. 3, s. 44; 2016, c. 25, Sched. 5, s. 4.

Same

(2) In making its determination, the Board may consider any relevant information obtained by the Board in addition to the evidence given at the hearing, provided that

it first informs the parties of the additional information and gives them an opportunity to explain or refute it. 2006, c. 17, s. 201 (2).

Same

(3) If a party fails to comply with a direction under clause (1) (d), the Board may,

(a) refuse to consider the party's submissions and evidence respecting the matter regarding which there was a failure to comply; or

(b) if the party who has failed to comply is the applicant, dismiss all or part of the application. 2006, c. 17, s. 201 (3).

Parties may view premises with Board

(4) If the Board intends to view premises under clause (1) (e), the Board shall give the parties an opportunity to view the premises with the Board. 2006, c. 17, s. 201 (4).

▼ Section Amendments with date in force (d/m/y)

Findings of Board

202 (1) In making findings on an application, the Board shall ascertain the real substance of all transactions and activities relating to a residential complex or a rental unit and the good faith of the participants and in doing so,

(a) may disregard the outward form of a transaction or the separate corporate existence of participants; and

(b) may have regard to the pattern of activities relating to the residential complex or the rental unit. 2006, c. 17, s. 202.

Exception

(2) Subsection (1) does not apply to an application made under Part V.1. 2013, c. 3, s. 45.

▼ Section Amendments with date in force (d/m/y)

Determinations related to housing assistance

203 The Board shall not make determinations or review decisions concerning,

(a) eligibility for rent-geared-to-income assistance as defined in section 38 of the *Housing Services Act, 2011* or the amount of geared-to-income rent payable under that Act; or

(b) eligibility for, or the amount of, any prescribed form of housing assistance. 2006, c. 17, s. 203; 2011, c. 6, Sched. 1, s. 188 (3).

▼ Section Amendments with date in force (d/m/y)

Determinations related to non-profit housing co-operative housing charges

203.1 The Board shall not make determinations or review decisions in respect of non-profit housing co-operatives concerning,

(a) housing charges that have been established by a resolution of the members of a non-profit housing co-operative or, where authorized by the by-laws of the co-operative, by the board of directors of the co-operative;

(b) eligibility for, or the amount of, any subsidy established for the regular monthly housing charges; or

(c) eligibility for, or the amount of, any subsidy awarded to a member. 2013, c. 3, s. 46.

▼ Section Amendments with date in force (d/m/y)

Conditions in order

204 (1) The Board may include in an order whatever conditions it considers fair in the circumstances. 2006, c. 17, s. 204 (1).

Order re costs

(2) The Board may order a party to an application to pay the costs of another party. 2006, c. 17, s. 204 (2).

Same